



February 8th 2018 Delaware County Redevelopment Commission

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=MnDIZqmtG64
Publication Date	2018-02-09T18:11:41Z
Target Category	delaware_county

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Municipal Meeting Summary Report

Delaware County Redevelopment Commission

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Redevelopment Commission was called to order by the presiding officer [00:00:08](#).
- **Attendance:** Specific roll call of members present or absent was not explicitly read into the audio record, though presiding officers and speakers identified during the meeting include James King (incoming President) and Carol (incoming Vice President).

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the recitation of the Pledge of Allegiance [00:00:15](#).
- **Election of Officers:** Nominations were opened for board officers. James King was nominated for President and Carol for Vice President. The nominations were closed and approved by voice vote [[00:00:45](#) <U+2013> [00:01:14](#)].

- **Approval of Minutes:** The minutes of the December 14th meeting were presented, motioned, seconded, and approved by voice vote [00:01:25 <U+2013> 00:01:35].
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3. Substantive Business & Board Action

- **00:01:37 Standard Legal Services Agreement - Brookes Stephens**
 - **Sponsor / Presenter:** Presented by staff/legal.
 - **Deliberation Summary:** The board reviewed the standard agreement for legal counsel Brookes Stephens, noting his active and daily assistance with business matters and high value to the commission.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motioned, seconded, and approved by voice vote [00:01:48 <U+2013> 00:02:09].
- **00:02:12 Gas Station Demolition & Brownfield Site Update (IDEM Reimbursement)**
 - **Sponsor / Presenter:** Presented by environmental consultants / James.
 - **Deliberation Summary:** A detailed update was provided regarding the excess liability trust fund (ELTF) and brownfield site characterization. The plume spans approximately 400 feet, and historical costs total roughly \$160,000, with an estimated \$40,000 needed for additional soil work. Total lifecycle project costs are projected at \$545,000. Legal counsel is working with IDEM to increase the initial responsible party reimbursement percentage (currently targeting up to 65% with peeled-off deductibles), reducing out-of-pocket costs. Future steps include completing characterization, executing corrective action/source area excavation, and eventually issuing an RFP to developers for retail storefront use.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Information-only presentation; no formal vote taken.
- **00:15:56 Annual TIF (Tax Increment Financing) Report Presentation**
 - **Sponsor / Presenter:** Matt and Lauren Teemu (financial advisors/consultants).
 - **Deliberation Summary:** Consultants presented the annual TIF report covering allocation areas based on 2018 assessed values and 2017 tax rates. Key areas reviewed include:
 - *Morrison Road Area:* Legacy area with stable revenues funding the 2015 bonds and acting as junior backup for rail spur bonds.
 - *Nebo Area (Nebo 1 & Nebo 2):* Nebo 1 faces minor revenue shortfalls covered by Nebo Land Partners guarantees; Nebo 2 has no obligations and offers spending flexibility.
 - *Park One, Park One-Sub, Part 2, and Related Industrial Areas:* Detailed breakdowns of debt service coverage, bond maturities (e.g., 2000 bonds maturing in 2020), and designated subordinate pledges. Mentioned a \$700,000 clawback payment received from Rivini to assist with debt service shortfalls.

- *Magna & Industrial Center*: Generating strong tax increment and EDIT revenues exceeding shell building payment obligations (\$400,000/year).
 - *Daleville Area*: Legacy residential TIF area supporting 2015 bonds, wastewater district pledges, and shell building interest.
 - *PRL Area*: Generating surplus funds (\$531k TIF, \$473k EDIT) exceeding debt service (\$327k), offering capacity for cash-funding projects or calling bonds early.
- **Item-Specific Public Input**: None.
- **Action & Vote Disposition**: Information-only report; no formal vote taken.
- **00:40:21 Invoices and Bond Payments Approval**
 - **Sponsor / Presenter**: Board / Staff.
 - **Deliberation Summary**: Routine presentation of current invoices and bond payment obligations for commission authorization.
 - **Item-Specific Public Input**: None.
 - **Action & Vote Disposition**: Motioned, seconded, and approved by voice vote [00:40:21 <U+2013> 00:40:31].

4. Open Public Comment / Citizen Forum

- **00:40:37 Brad (Staff/Representative) <U+2014> Overpayment Recovery Issue**
 - **Details**: Brad brought forward an administrative discovery regarding a 2015<U+2013>2016 demolition project where Rodney Garber Contracting had been double-billed/overpaid by \$2,200. Because prior email follow-ups to Garber Contracting went unanswered, Brad requested formal authorization from the board to instruct legal counsel (Joe) to send a certified demand letter for immediate repayment.
 - **Action & Vote Disposition**: Motion made, seconded, and approved by voice vote [00:41:37 <U+2013> 00:41:46].

5. Administrative Updates & Adjournment

- **Staff / Board Announcements**: General expressions of gratitude between board members, legal counsel, and auditing staff for ongoing collaboration and administrative responsiveness.
- **Adjournment**: Hearing no further business, a motion to adjourn was made, seconded, and approved by voice vote [00:41:55 <U+2013> 00:42:00].